

25SMCV04917 25SMCV04917

County: los-angeles

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Case Number: 25SMCV04917 Hearing Date: August 3, 2026 Dept: 207

TENTATIVE RULING – NO. 1

DEPARTMENT

207

HEARING DATE

August 3, 2026

CASE NUMBER

25SMCV04917

MOTION

Motion to Serve Defendant Mostashfi by Publication

MOVING PARTY

Plaintiff Samuel Chocholac

OPPOSING PARTY

none

MOTION

This case arises over a dispute concerning the purchase of real property.

The operative First Amended Complaint ("FAC") filed by Plaintiff Samuel Chocholac ("Plaintiff") against Defendants Ali Mokhtari ("Mokhtari"); Soudabeh Mostashfi, individually and as trustee of the Soudabeh Mostashfi Trust ("Mostashfi"); and Carlos Esparza ("Esparza") (together, "Defendants") alleges three causes of action for (1) Quiet Title; (2) Breach of Contract; and (3) Violation of Contractors' State License Law and Disgorgement Under Business & Professions Code, § 7031, subd. (b).

Plaintiff claims he has been unable, through reasonable diligence, to locate and serve Mostashfi, and therefore requests leave to serve Mostashfi by publication. The motion is unopposed.

LEGAL STANDARD

"In the absence of a voluntary submission to the authority of the court, compliance with the statutes governing service of process is essential to establish that court's personal jurisdiction over a defendant." (Dill v. Berquist Construction Co. (1994) 24 Cal.App.4th 1426, 1439–1440.) "In order to obtain in personam jurisdiction through any form of constructive service there must be strict compliance with the requisite statutory procedures. (Zirbes v. Stratton (1986) 187 Cal.App.3d 1407, 1417, quoting Stamps v. Superior Court (1971) 14 Cal.App.3d 108, 110.)

For service on persons within California, generally, service of summons and complaint must be done by personal service. (Code Civ. Proc., § 415.10.) However, "[i]f a copy of the summons and complaint cannot with reasonable diligence be personally delivered to the person to be served," a plaintiff may serve an individual defendant "by leaving a copy of the summons and complaint at the person's dwelling house, usual place of abode, usual place of business, or usual mailing address . . . , in the presence of a competent member of the household or a person apparently in charge of his or her office, place of business, or usual mailing address . . . , at least 18 years of age, who shall be informed of the contents thereof, and by thereafter mailing a copy of the summons and of the complaint by first-class mail, postage prepaid to the person to be served at the place where a copy of the summons and complaint were left." (Code Civ. Proc., § 415.20, subd. (b).)

A state may also exercise jurisdiction over an individual who consents to such jurisdiction. (Nobel Floral, Inc. v. Pasero (2003) 106 Cal.App.4th 654, 658.) "Express consent to a court's jurisdiction will occur by generally appearing in an action or by a valid forum-selection clause designating a particular forum for dispute resolution regardless of residence." (Ibid. [cleaned up].) "Consent to a court's jurisdiction may also be implied by conduct." (Ibid.) For example, a nonresident plaintiff who commences an action thereby submits to that court's personal jurisdiction on any cross-complaint filed against him by the defendant." (Ibid.) "Similarly, a nonresident plaintiff who has filed a suit in California against particular parties has consented to jurisdiction in California when these same parties later sue him in a related action." (Sea Foods Co., Ltd. v. O.M. Foods Co., Ltd. (2007) 150 Cal.App.4th 769, 786, as modified (May 23, 2007).) "By choosing a particular forum, [the] plaintiff is considered to have voluntarily submitted to the court's jurisdiction 'for all purposes for which justice to the defendant requires his presence.'" (Ibid.)

A summons may also be served within the state by mailing the summons and complaint with a notice and acknowledgment of receipt and a return envelope, postage prepaid, addressed to the sender. (Code Civ. Proc., § 415.30, subd. (a).) Such service is deemed complete on the date the written acknowledgement of receipt of summons is executed, if such acknowledgment is thereafter returned to the sender. (Code Civ. Proc., § 415.30, subd. (c).) If the person to whom the summons, complaint, and notice are mailed fails to complete and return the acknowledgement within 20 days, that person shall be liable for reasonable expenses thereafter incurred in serving or attempting to serve them by another method. (Code Civ. Proc., § 415.30, subd. (d).)

Failing all that, "[a] summons may be served by publication if upon affidavit it appears to the satisfaction of the court in which the action is pending that the party to be served cannot with reasonable diligence be served in another manner specified in this article[.]" (Code Civ. Proc., § 415.50, subd. (a).) But "[i]f a defendant's address is ascertainable, a method of service superior to publication must be employed, because constitutional principles of due process of law, as well as the authorizing statute, require that service by publication be utilized only as a last resort." (Watts v. Crawford (1995) 10 Cal.4th 743, 749, fn.

5.)

Finally, "if a plaintiff, despite exercising reasonable diligence, has been unable to effect service of the summons by any of the methods authorized under this chapter, the court in which the action is pending may, upon motion, direct that summons be served in a manner that is reasonably calculated to give actual notice to the party to be served, including by electronic mail or other electronic technology, and that proof of such service be made as prescribed by the court." (Code Civ. Proc., § 413.30, subd. (a)(1).) "A plaintiff seeking to establish reasonable diligence under this section shall set forth facts detailing all attempts to serve the defendant by each of the methods prescribed by statute, including facts demonstrating why each method was unsuccessful at every address or location where the defendant is likely to be found.

ANALYSIS

With regard to diligence, Plaintiff advances the attorney Declaration of David N. Tarlow, which provides as follows:

3. On September 24, 2025, I personally conducted a Public Records PeopleMap and Company Investigator search on Westlaw for Ms. Mostashfi. The last known address for her which showed up on Westlaw was 11645 Montana Avenue Apt. 307, Los Angeles, CA 90049- 4658 (the "Montana Address"). I know that she does not reside at the Montana Address, because that is where Plaintiff resides. I have searched Westlaw on other occasions since September 24, 2025, including on July 17, 2026 while preparing the instant declaration, and no new address for her has been posted. Attached hereto as Exhibit 'A' is the latest address report on Ms. Mostashfi, showing that her most recent address is still the Montana Address.

4. The other defendants in this action have been served. Ms. Mostashfi's son, Defendant Ali Mokhtari, was personally served with the First Amended Summons and FAC on March 29, 2026, and the proof of service was filed with the Court on April 1, 2026. Defendant Carlos Esparza was served by substituted service on May 31, 2026, and the proof of service was filed with the Court on June 3, 2026. True and correct copies of the filed proofs of service are attached hereto as Exhibit "B."

5. On April 27, 2026, and again on May 27, 2026, I spoke with Moses Bardavid, Esq. Mr. Bardavid told me, among other things, that he would be appearing on behalf of Mr. Mokhtari, and he intended on filing a demurrer. During those conversations, I asked Mr. Bardavid if he was going to be representing Ms. Mostashfi in this action as well and whether he would be authorized to accept service on her behalf. On both occasions, he indicated that he had not been retained by Ms. Mostashfi, but that he would check with Mr. Mokhtari and find out whether he was going to represent her as well and get back to me. He did not do so. In the last call with Mr. Bardavid on May 27, 2026, I asked Mr. Bardavid whether he could provide me with Ms. Mostashfi's address in the event that he was not accepting service on her behalf. Again, he stated that he would check his client and get back to me. He never did so.

6. Having been unable to obtain a current address through those searches, on June 26, 2026, I directed my assistant to retain a licensed private investigation service to locate Ms. Mostashfi. She then hired ASAP Legal to do the investigation to locate Ms. Mostashfi.

7. On June 29, 2026, the investigation service reported that the most current residential address it could identify for Ms. Mostashfi remained the Montana Avenue address, and that it was unable to locate any records indicating that she currently resides in a retirement community. A true and correct copy of the communications between my assistant and ASAP Legal concerning the search for Ms. Mostashfi's address is attached hereto as Exhibit "C." ASAP Legal recommended that we contact her son to inquire of her whereabouts. As Mr. Mokhtari is a represented party, we had to speak with his counsel.

8. On July 8, 2026, Plaintiff also served Special Interrogatories, Set One, on Defendant Ali Mokhtari, seeking Ms. Mostashfi's current address. Responses are not due until after the upcoming Case Management Conference (scheduled for July 27, 2026), and Plaintiff has not yet received the requested address information.

9. On July 10, 2026, I emailed Moses Bardvid whereby I asked him: "Circling back with you on this from our last telephone call. Are you authorized to accept service on behalf of Soudabeh Mostashfi? If not, can you please let me know where she is currently living or located." A true and correct copy of said email is attached hereto as Exhibit "D." Mr. Bardavid has not responded to my email.

10. On March 2, 2026, the Court set an Order to Show Cause re: why sanctions should not be imposed for Plaintiff's failure to file a proof of service of the summons and complaint. That Order to Show Cause is also currently set for July 27, 2026.

11. Based on the foregoing, Ms. Mostashfi cannot, with reasonable diligence, be served with the Summons and First Amended Verified Complaint by any of the methods specified in Code of Civil Procedure sections 415.10 through 415.30. I therefore respectfully request that the Court authorize service of the Summons and FAC upon Ms. Mostashfi by publication in a newspaper of general circulation most likely to give her actual notice, published once each week for four successive weeks.

(Tarlow Decl. ¶¶ 3-11.)

The Court finds the motion premature for two reasons. First, Plaintiff has not demonstrated any attempt to serve Ms. Mostashfi by mailing the summons with a notice and acknowledgment of receipt to her last known address. Although Plaintiff himself currently resides at Ms. Mostashfi's last known address, it is possible that Ms. Mostashfi has set up with the United States Postal Service to forward mail to a new address. Further, that effort is required by the Code before the Court can grant a request to serve by publication.

Second, Plaintiff has outstanding discovery to Mostashfi's son, inquiring about Mostashfi's current address, as well as outstanding unanswered inquiries to Mostashfi's son's counsel regarding whether counsel may accept service on Mostashfi's behalf.

CONCLUSION AND ORDER

For the foregoing reasons, the Court denies Plaintiff's motion to serve Mostashfi by publication without prejudice to Plaintiff's filing a renewed motion after further reasonable diligence has been established.

Plaintiff shall provide notice of the Court's ruling and file the notice with a proof of service forthwith.

DATED: August 3, 2026 _____/s/ _____

Michael E. Whitaker

Judge of the Superior Court

TENTATIVE RULING – NO. 2

DEPARTMENT

207

HEARING DATE

August 3, 2026

CASE NUMBER

25SMCV04917

MOTIONS

Demurrer and Motion to Strike

MOVING PARTY

Defendant Ali Mokhtari

OPPOSING PARTY

Plaintiff Samuel Chocholac

MOTIONS

This case arises over a dispute concerning the purchase of real property.

The operative First Amended Complaint ("FAC") by Plaintiff Samuel

Chocholac ("Plaintiff") against Defendants Ali Mokhtari ("Mokhtari"); Mokhtari's

mother, Soudabeh Mostashfi, individually and as trustee of the Soudabeh Mostashfi

Trust ("Mostashfi"); and contractor Carlos Esparza ("Esparza") (together,

"Defendants") alleges three causes of action for (1) Quiet Title; (2) Breach of

Contract; and (3) Violation of Contractors' State License Law and Disgorgement

Under Business & Professions Code, § 7031, subd. (b).

Defendant Mokhtari now demurs to the FAC on the grounds that it fails

to state facts sufficient to constitute a cause of action and is uncertain,

pursuant to Code of Civil Procedure section 430.10, subdivisions (e) and (f),

respectively. Mokhtari also moves to

strike requests for treble damages and attorneys' fees.

Plaintiff opposes both motions and Mokhtari replies in support of the demurrer.

ANALYSIS

1.

DEMURRER

"It is black letter law that

a demurrer tests the legal sufficiency of the allegations in a complaint."

(Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) In

testing the sufficiency of a cause of action, a court accepts "[a]s true all

material facts properly pled and matters which may be judicially noticed but

disregard contentions, deductions or conclusions of fact or law. [A court also gives] the complaint a

reasonable interpretation, reading it as a whole and its parts in their

context." (290 Division (EAT), LLC v.

City & County of San Francisco (2022) 86 Cal.App.5th 439, 450 [cleaned

up]; Hacker v. Homeward Residential, Inc. (2018) 26 Cal.App.5th 270, 280

["in considering the merits of a demurrer, however, "the facts alleged in the

pleading are deemed to be true, however improbable they may be"].)

Further, in ruling on a

demurrer, a court must “liberally construe” the allegations of the complaint

“with a view to substantial justice between the parties.” (See Code Civ. Proc., § 452.) “This rule of liberal construction means that

the reviewing court draws inferences favorable to the plaintiff, not the

defendant.” (Perez v. Golden Empire Transit Dist. (2012) 209

Cal.App.4th 1228, 1238.)

In summary, “[d]etermining

whether the complaint is sufficient as against the demurrer on the ground that

it does not state facts sufficient to constitute a cause of action, the rule is

that if on consideration of all the facts stated it appears the plaintiff is

entitled to any relief at the hands of the court against the defendants the

complaint will be held good although the facts may not be clearly stated, or

may be intermingled with a statement of other facts irrelevant to the cause of

action shown, or although the plaintiff may demand relief to which he is not

entitled under the facts alleged.” (Gressley

v. Williams (1961) 193 Cal.App.2d 636, 639.)

A.

UNCERTAINTY

“[D]emurrers for uncertainty

are disfavored.” (Lickiss v.

Financial Industry Regulatory Authority (2012) 208 Cal.App.4th 1125,

1135.) “A demurrer for uncertainty will

be sustained only where the pleading is so bad that the responding party cannot

reasonably respond - i.e., [a party] cannot reasonably determine what

issues must be admitted or denied, or what counts or claims are directed

against [the party].” (Weil & Brown,

Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2026) ¶

7:85, p. 45, emphasis in original.)

As such, where a demurrer is

made upon the ground of uncertainty, the demurrer must distinctly specify

exactly how or why the pleading is uncertain, and where such uncertainty

appears by reference to page and line numbers.

(See Fenton v. Groveland Comm. Services Dist. (1982) 135

Cal.App.3d 797, 809 [“Generally, the failure to specify the uncertain aspects

of a complaint will defeat a demurrer based on the grounds of uncertainty”].)

With respect to uncertainty, Mokhtari

argues that the FAC lacks clarity with respect to the alleged agreement. Plaintiff alleges:

9.

Plaintiff is informed and believes and thereon alleges that Ali is and was the

actual agent of and/or had power of attorney over the financial and real estate affairs of his mother, Soudabeh, at all times from and after September of 2024 to the present.

10.

Chocholac and Defendant Ali have been close friends for approximately 7 years, such that Plaintiff and Ali shared a relationship of trust and confidence pursuant to which Chocholac invested special trust and belief in Ali, and Plaintiff is informed and believes and thereon alleges that Ali knew of and accepted that trust and confidence from Chocholac. Based on that longstanding relationship and mutual understanding of trust and confidence in Ali, Plaintiff reasonably believed and relied upon statements of fact, representations, bargains, promises, and agreements made by or with Ali regarding the Property.

11.

Plaintiff is informed and believes and thereon alleges that Ali's mother, Soudabeh, lived at the Property from or about 2001 to 2024. Further, since at least 2023, Ali has granted Chocholac permission to park cars in the garage at the Property.

12. In

or about May of 2024 in Los Angeles, California, Ali asked Chocholac to loan him \$40,000, repayable on demand. On or about May 20, 2024, Chocholac loaned

Ali the \$40,000 as requested.

13. In

or about August of 2024, Ali again requested a loan from Chocholac, payable on demand.

This time, he requested a loan of \$30,000. On August 26, 2024, Chocholac loaned

Ali the \$30,000 as requested.

14. In

or about September of 2024, Ali again requested a loan from Chocholac, payable

on demand. This time, he requested another loan of \$30,000. On September 16,

2024, Chocholac loaned Ali the \$30,000 as requested.

15. On

or about September 24, 2024, Ali requested that Chocholac loan him an

additional \$15,000, payable on demand. On September 24, 2024, , Chocholac

loaned Ali the \$15,000 as requested.

16. In

or about early October of 2024, after borrowing the \$115,000 from Plaintiff as

set forth above, Ali told Plaintiff that Ali was not capable of repaying the

\$115,000 in loans because he had to pay to move his mother, Soudabeh, out of

the Property and into a nursing home. It was at this time that Ali represented

to Plaintiff that he owned the Property, and since he was moving Soudabeh into

a nursing home, that Chocholac should purchase the Property from Ali for

\$620,000. Ali stated, in connection with this proposal, that he would apply the \$115,000 in loan repayments that Ali owed to Chocholac towards the purchase price of the Property, leaving a balance of only \$505,000 for Chocholac's purchase of the Property. Chocholac accepted Ali's offer.

17. On

October 29, 2024, Chocholac paid Ali \$50,000 towards the price of the Property, and Ali accepted the payment in furtherance to the agreement to sell the Property to Plaintiff.

18. On

October 31, 2024, Chocholac paid Ali \$110,000 towards the purchase price of the Property.

19. On

or about January 6, 2025, Ali orally told Chocholac that Ali needed a payment of \$200,000 from Plaintiff so that Ali could completely pay off the mortgage for the Property. Accordingly, on January 6, 2025, Chocholac paid Ali \$200,000 towards the purchase of the Property.

20. On

March 4, 2025, Chocholac paid Ali \$80,000 towards the purchase of the Property.

21. On

April 21, 2025, Chocholac paid Ali \$65,000 towards the purchase of the

Property. Accordingly, by April 21, 2025, Chocholac had made payment to Ali of exactly \$620,000, and Ali had accepted all of those payments.

22. On

or about July 20, 2025, Chocholac moved into the Property.

23.

Chocholac has requested that Ali provide him with a grant deed to the Property, but Ali has failed and refused and continues to fail and refuse to provide Plaintiff with a Grant Deed.

24.

During the period of time that Chocholac was paying down the purchase price for the Property, Ali and his wife Sophie Mokhtar ("Sophie") represented to Chocholac that they had a contractor named Carlos Esparza ("Contractor"), who could remodel the Property for Plaintiff for approximately \$60,000 to \$70,000, inclusive of the cost and installation of new appliances. They told Plaintiff that they had known the Contractor for more than 20 years, and that they would be the point people who the Contractor would deal with. Ali and Sophie represented that all Plaintiff needed to do was select the appliances and various designs which he wanted installed in the Property, and they would do the rest. Further, they represented to Plaintiff that the cost of the contractor would be \$5,000 a week for labor, plus the costs of materials, and that

Chocholac could make the Contractor's payment to Ali and Sophie directly.

25.

Chocholac agreed to retain the Contractor through Ali and Sophie, and to that end, has paid to Ali and Sophie an additional \$180,000 for the Contractor's work and materials, which is nearly 3 times more than Ali and Sophie told him it would cost.

26.

Further, in the summer of 2025, Chocholac learned that the Contractor did not maintain a Contractor's License throughout the period of his employment and work on the Property, and that Ali was actually paying him \$7,500 per week for labor and charging Chocholac for same, even during weeks when the Contractor did not show up to the Property to work.

27.

Accordingly, Chocholac instructed Ali and Sophie to have the Contractor cease working at the Property. Soon after that instruction, Ali told Plaintiff that he would not provide him a Grant Deed to the Property because Chocholac allegedly did not pay the full amount of the \$620,000 purchase price for the Property. Ali claimed that, even though Plaintiff had paid \$800,000 in total for the Property and the Contractor's services, \$225,000 of those monies was allocated by Ali to the Contractor's services and only \$575,000 was allocated towards the

purchase of the Property. Further, Ali threatened to sell the Property to another buyer if Chocholac did not pay him another \$90,000 forthwith- \$45,000 for the Property and \$45,000 for the remodel. Ali stated that he would not accept anything less than a \$90,000 payment.

28. In

preparation for filing this Complaint, Plaintiff obtained a Preliminary Title Report which reflects that Ali's mother, Soudabeh, whom Plaintiff is informed and believes and thereon alleges is of advanced age, infirm, and confined to a nursing home, is currently on title, and Ali, her agent and representative, who claimed to be the actual owner and seller of the Property, is not on title.

Accordingly, Chocholac now files the instant lawsuit to Quiet Title to the Property.

[...]

39. In

or about early October of 2024, Plaintiff Chocholac and Defendants Mokhtari, individually and as agent and representative for his mother, Soudebeh, entered into an oral purchase and sale agreement for the Property for the sum total of \$620,000.

(FAC ¶¶ 11-28, 39.)

Mokhtari

argues that the allegations are uncertain because they are brought against

Mokhtari, yet allege title is held in Mostashfi's name. Mokhtari also contends that Plaintiff alleges

various loan agreements, but does not specify whether those agreements are

written, oral, or implied by conduct. Further,

Mokhtari asserts that Plaintiff does not allege any agreement with Mostashfi to

sell Plaintiff her home.

The

Court does not find the allegations uncertain.

Mokhtari does not identify any portions of the FAC so faulty that

Mokhtari cannot determine what issues must be admitted or denied or what claims

are directed against him.

Indeed,

Plaintiff alleges that Mokhtari acted as Mostashfi's agent (FAC ¶ 9), which is

supported by allegations that Mokhtari hired contractor Esparza to renovate the

property (FAC ¶¶ 24-26.) Further, Mokhtari

represented to Plaintiff that he owns the property (FAC ¶ 16), yet Plaintiff's

own research demonstrates that the property is held in Mokhtari's mother's name,

Mostashfi. (FAC ¶ 28.)

Further, to the extent Mokhtari

suggests by his arguments that it is unclear whether the loan agreements were

written, oral, or implied by conduct, and that the FAC is thereby subject to

demurrer via Code of Civil Procedure section 430.10, subdivision (g), the Court

finds that this ground is not raised in the notice of demurrer. Further, the only agreement upon which the

claims are based—the agreement to sell the property and to apply the prior

loans against the purchase price—is alleged to be oral. (FAC ¶¶ 16, 39.)

As such, the Court declines

to sustain the demurrer on the grounds of uncertainty and/or that it cannot be

ascertained whether the alleged contract is written, oral, or implied by

conduct.

B.

FAILURE TO STATE A CAUSE OF ACTION

i.

First Cause

of Action – Quiet Title

For an action to quiet title:

The complaint shall be verified and shall include all of the following:

(a) A description of the property that is the subject of the action.

In the case of tangible personal property, the description shall include its

usual location. In the case of real property, the description shall include

both its legal description and its street address or common designation, if

any.

(b) The title of the plaintiff as to which a determination under

this chapter is sought and the basis of the title. If the title is based upon

adverse possession, the complaint shall allege the specific facts constituting

the adverse possession.

(c) The adverse claims to the title of the plaintiff against which a

determination is sought.

(d) The date as of which the determination is sought. If the

determination is sought as of a date other than the date the complaint is

filed, the complaint shall include a statement of the reasons why a

determination as of that date is sought.

(e) A prayer for the determination of the title of the plaintiff

against the adverse claims.

(Code

Civ. Proc., § 761.020.) Here,

Plaintiff has verified the FAC and alleges:

16. [A]li represented to Plaintiff that he owned

the Property [...]

28. In

preparation for filing this Complaint, Plaintiff obtained a Preliminary Title

Report which reflects that Ali's mother, Soudabeh, whom Plaintiff is informed and believes and thereon alleges is of advanced age, infirm, and confined to a nursing home, is currently on title, and Ali, her agent and representative, who claimed to be the actual owner and seller of the Property, is not on title.

Accordingly, Chocholac now files the instant lawsuit to Quiet Title to the Property.

[...]

30. The legal description of the Property, which is located at the address commonly known as 11645 Montana Avenue, Apt. 307, Los Angeles, CA 90049 and is identified by APN 4401-024-196, is:

A CONDOMINIUM COMPRISED OF:

Parcel 1:

A) an undivided .009467 percent interest in and to Lot 1, of Tract No. 34645, in the City of Los Angeles, County of Los Angeles, State of California, as per Map recorded in Book 955 Page(s) 42 and 43 of Maps, in the Office of the County Recorder of said County.

Except therefrom Units 101 to 112 inclusive, 114 to 140 inclusive, 201 to 212 inclusive, 214 to 240 inclusive, 301 to 312 inclusive and 314 to 340 inclusive, as shown and defined on the Condominium Plan for said Lot 1, recorded July 10, 1981 as Instrument No. 81-688801, of Official Records.

Except therefrom all minerals, oil, gas, petroleum, other hydrocarbon substances and all underground water in or under or which may be produced from said lot which underlies a plane parallel to and 550 feet below the present surface of said lot for the purpose of prospecting for, the exploration, development, production, extraction and taking of said minerals, oil, gas, petroleum, other hydrocarbon substances and water from said lot by means of mines, wells, derricks or other equipment from surface locations on adjoining or neighboring land or lying outside of the above described lot, it being understood that the owner of such minerals, oil gas, petroleum, other hydrocarbon substances and water as set forth above, shall have no right to enter upon the surface or any portion thereof above said plane parallel to and 550 feet below the present surface of the said lot for any purpose whatsoever.

B) Unit 307 as shown and defined on said Condominium Plan. Parcel 2:

An exclusive easement for balcony purposes, over that portion of said Lot 1, shown and defined as C-307 on said Condominium Plan.

Assessor's Parcel No: 4401-024-196

31. Plaintiff was expressly told by Ali that he owned the Property and that he would sell the Property to Plaintiff for the sum of \$620,000. Moreover, Plaintiff is informed and believes and thereon alleges that Ali is the actual agent and representative of and/or had power of attorney over the financial and

real estate affairs of his mother, Soudabeh, at all times from and after

September of 2024 to the present.

32. Further to the facts alleged immediately above in paragraph 30,

Plaintiff paid Ali the sum of \$620,000 for the purchase of the Property,

\$200,000 of which Plaintiff is informed and believes and thereon alleges that

Ali used for the express purpose of paying off the mortgage to the Property as

represented by Ali.

33. Plaintiff is the rightful owner of the Property as his funds were

procured by Ali for the express purpose of purchasing the Property, and to pay

off the mortgage to the Property. At no time have Defendants, or any of them,

returned or offered to return the purchase price.

34. Plaintiff is informed and believes, and based thereon alleges, that

Ali and Soudabeh do not recognize that Plaintiff has title or claims to the

Property.

35. Chocholac is seeking to quiet title against adverse claims described

above to reflect that Plaintiff holds title to the Property.

36. Chocholac seeks to quiet title against the unknown, uncertain or

contingent claims, if any, of all unknown defendants described in Paragraph 5

herein, whether or not the claim or cloud is known to Chocholac.

37. Chocholac seeks to quiet title as of the date of the filing of this

Complaint.

[...]

1. For a Court order quieting Chocholac's title in the Property against

any and all adverse claims of Ali, Soudabeh or any of the DOE Defendants

herein;

(FAC

¶¶ 16, 28, 30-37, Prayer at ¶ 1.)

Plaintiff has alleged (1) the legal

description and address of the subject property (FAC ¶ 30); (2) the basis for

Plaintiff's claim to title (FAC ¶ 31);

(3) the adverse claims to title (FAC ¶¶ 16, 28, 34); (4) the date as of which a

determination is sought (FAC ¶ 37); and (5) a prayer seeking to quiet

Plaintiff's title against the adverse claims.

Yet Mokhtari argues that Civil Code

section 1624 provides that contracts for the sale of real property are invalid,

unless they are made in writing. (Civ. Code

§ 1624, subd. (a)(3).)

In opposition, Plaintiff points out

that the contract has been performed in that Plaintiff has paid Mokhtari the

full purchase price and has moved into the property, where he currently

resides. (FAC ¶¶ 21-22.) As such, the specific performance sought of quieting title may be obtained.

In support, Plaintiff cites to Engasser v. Jones: “the general rule is stated to be that an oral contract for the sale of real property, or of an interest therein, is invalid under the statute of frauds; but where there has been a part performance thereof, its specific performance will be compelled by a court of equity.” (Engasser v. Jones (1948)

88 Cal.App.2d 171, 176, citations omitted.)

In reply, Mokhtari argues that Plaintiff has not alleged that he tendered the purchase price to any escrow, and therefore the allegations are insufficient to take it out of the statute of frauds.

Mokhtari does not cite any authority for the proposition that the purchase price must be tendered through escrow to constitute performance. Further, here, Plaintiff alleges he moved into the property.

(FAC ¶ 22.)

Therefore, the Court overrules

Mokhtari’s demurrer to the first cause of action.

ii.

Second Cause

of Action – Breach of Contract

“To prevail on a cause of action for breach of contract, the plaintiff

must prove (1) the contract, (2) the plaintiff's performance of the contract or

excuse for nonperformance, (3) the defendant's breach, and (4) the resulting

damage to the plaintiff.” (Richman v.

Hartley (2014) 224 Cal.App.4th 1182, 1186.)

Plaintiff alleges in the FAC:

39. In or about early October of 2024,

Plaintiff Chocholac and Defendants Mokhtari, individually and as agent and

representative for his mother, Soudebeh, entered into an oral purchase and sale

agreement for the Property for the sum total of \$620,000.

40. Plaintiff paid to Mokhtari, individually

and/or as the agent and representative for Soudabeh, the amount of \$620,000,

thereby making the oral purchase and sale agreement for the Property fully

executed.

41. Plaintiff has performed each of the

obligations required of him under the oral purchase agreement, except for those

obligations which he was excused from performing due to Defendant's breach of

same.

42. On or about April 21, 2025, Defendants,

and each of them, breached the Loan Agreement by failing to transfer title to

the Property to Plaintiff upon Plaintiff's full payment of the purchase price.

43. The purchase price for the Property was

fair, just and equitable consideration to Defendants, and each of them, for the

transfer of title to the Property.

44. As real estate is unique, Chocholac has

no adequate remedy at law for the harm caused by Defendants', and each of their

breach of the purchase and sale agreement to the Property, and therefore seeks

specific performance of his right to have Defendants, and each of them, convey

good title to the Property to him forthwith.

45. In the alternative, if it is determined

that specific performance is not an available remedy to Plaintiff, and that

there is an adequate remedy at law, as a result of the Defendants' and each of

their breach of the purchase and sale agreement, there is now due, owing and

unpaid from Defendant to Plaintiff the sum of \$800,000 (the amount paid for the

Property and Contractor's Services to purportedly remodel the Property), plus

interest at the lawful rate thereon to be determined at time of trial.

(FAC

¶¶ 39-45.)

Thus, the FAC alleges (1) the

existence of a contract (FAC ¶ 39); (2) Plaintiff's performance thereunder (FAC

¶¶ 40-41); (3) Defendants' breach (FAC ¶ 42); and (4) resulting damage (FAC ¶¶

44-45.)

Mokhtari argues that the FAC must

either set forth the terms of the contract verbatim or attach a copy of the

contract. The Court disagrees.

As a threshold matter, the case

Mokhtari cites, *Harris v. Rudin, Richman & Appel* (1999) 74

Cal.App.4th 299, 307, involved written contracts, whereas here, as

discussed above, the contract is oral.

Furthermore, "[t]he correct rule is that a plaintiff may plead the legal

effect of the contract rather than its precise language." (*Miles v. Deutsche Bank National Trust Co.*

(2015) 236 Cal.App.4th 394, 402.) In *Miles*,

the Court of Appeal noted "where a written instrument is the foundation of a

cause of action it may be pleaded in haec verba by

attaching a copy as an exhibit and incorporating it by proper reference." (*Ibid.*, emphasis in original &

quoting *Wise v. Southern Pacific Co.* (1963) 223 Cal.App.2d 50, overruled on other

grounds.) Thus, attaching a copy

of the written agreement and/or pleading the contents of a written agreement

verbatim are two ways of pleading a breach of contract claim, but not “the exclusive means of pleading a contract.” (Ibid., emphasis in original). To wit, a “plaintiff’s failure either to attach or to set out verbatim the terms of the contract was not fatal to his breach of contract cause of action.” (Ibid.)

Here, Plaintiff has adequately pleaded the material terms and legal effect of the contract at issue. Therefore, the Court overrules Mokhtari’s demurrer to the second cause of action.

iii.

Third Cause

of Action – Violation of the Contractors’ State License Law and Disgorgement

Under Business & Professions Code § 7031(b)

“[A] person who utilizes the

services of an unlicensed contractor may bring an action in any court of

competent jurisdiction in this state to recover all compensation paid to the

unlicensed contractor for performance of any act or contract.” (Business & Professions Code, § 7031,

subd. (b).) Plaintiff alleges in the FAC:

24.

During the period of time that Chocholac was paying down the purchase price for

the Property, Ali and his wife Sophie Mokhtar ("Sophie") represented to Chocholac that they had a contractor named Carlos Esparza ("Contractor"), who could remodel the Property for Plaintiff for approximately \$60,000 to \$70,000, inclusive of the cost and installation of new appliances. They told Plaintiff that they had known the Contractor for more than 20 years, and that they would be the point people who the Contractor would deal with. Ali and Sophie represented that all Plaintiff needed to do was select the appliances and various designs which he wanted installed in the Property, and they would do the rest. Further, they represented to Plaintiff that the cost of the contractor would be \$5,000 a week for labor, plus the costs of materials, and that Chocholac could make the Contractor's payment to Ali and Sophie directly.

25.

Chocholac agreed to retain the Contractor through Ali and Sophie, and to that end, has paid to Ali and Sophie an additional \$180,000 for the Contractor's work and materials, which is nearly 3 times more than Ali and Sophie told him it would cost.

26.

Further, in the summer of 2025, Chocholac learned that the Contractor did not maintain a Contractor's License throughout the period of his employment and work on the Property, and that Ali was actually paying him \$7,500 per week for

labor and charging Chocholac for same, even during weeks when the Contractor did not show up to the Property to work.

27.

Accordingly, Chocholac instructed Ali and Sophie to have the Contractor cease working at the Property. Soon after that instruction, Ali told Plaintiff that he would not provide him a Grant Deed to the Property because Chocholac allegedly did not pay the full amount of the \$620,000 purchase price for the Property. Ali claimed that, even though Plaintiff had paid \$800,000 in total for the Property and the Contractor's services, \$225,000 of those monies was allocated by Ali to the Contractor's services and only \$575,000 was allocated towards the purchase of the Property. Further, Ali threatened to sell the Property to another buyer if Chocholac did not pay him another \$90,000 forthwith- \$45,000 for the Property and \$45,000 for the remodel. Ali stated that he would not accept anything less than a \$90,000 payment.

50. Contractor undertook to perform work that required him to be licensed under B & P § 7026, among other statutes, even though neither Contractor nor Mokhtari had a license. Contractor performed contractors' services, and Mokhtari charged for and received compensation for those contractors' services.

51. Plaintiff is entitled to disgorgement of

all monies paid for contractors' services from Defendants, which he believes is approximately \$180,000 to be proven at time of trial.

52. Pursuant to Code of Civil Procedure §

1029.8(a), Plaintiff is entitled to recover treble damages in an amount subject

to proof. 53. Pursuant to Code of Civil Procedure § 1029.8(a), Plaintiff is

entitled to recover his costs and attorney's fees associated with this action

based upon the violations of the contractor licensure law by Mokhtari and

Contractor.

(FAC

¶¶ 24-27; 50-52.)

Mokhtari demurs on the grounds that

he is not alleged to be the contractor, Esparza is. As such, there is no basis to assert the

third cause of action against Mokhtari, who did not perform contractor services

without a license.

In opposition, Plaintiff argues that

Business and Professions Code section 7026 defines "contractor" as one who undertakes

to construct improvements, whether he does the work himself "or by or through

others" and Mokhtari, who does not have a contractor's license, "charged and

received compensation for those contractors' services." (FAC ¶ 50.)

Section 7026 defines "contractor" as

follows:

“Contractor,” for the purposes of this

chapter, is synonymous with “builder” and, within the meaning of this chapter,

a contractor is any person who undertakes to or offers to undertake to, or

purports to have the capacity to undertake to, or submits a bid to, or does

himself or herself or by or through others, construct, alter, repair, add to,

subtract from, improve, move, wreck or demolish any building, highway, road,

parking facility, railroad, excavation or other structure, project, development

or improvement, or to do any part thereof, including the erection of

scaffolding or other structures or works in connection therewith, or the

cleaning of grounds or structures in connection therewith, or the preparation

and removal of roadway construction zones, lane closures, flagging, or traffic

diversions, or the installation, repair, maintenance, or calibration of

monitoring equipment for underground storage tanks, and whether or not the

performance of work herein described involves the addition to, or fabrication

into, any structure, project, development or improvement herein described of

any material or article of merchandise. “Contractor” includes subcontractor and

specialty contractor. “Roadway” includes, but is not limited to, public or city

streets, highways, or any public conveyance.

Plaintiff alleges:

24.

During the period of time that Chocholac was paying down the purchase price for the Property, Ali and his wife Sophie Mokhtar ("Sophie") represented to Chocholac that they had a contractor named Carlos Esparza ("Contractor"), who could remodel the Property for Plaintiff for approximately \$60,000 to \$70,000, inclusive of the cost and installation of new appliances. They told Plaintiff that they had known the Contractor for more than 20 years, and that they would be the point people who the Contractor would deal with. Ali and Sophie represented that all Plaintiff needed to do was select the appliances and various designs which he wanted installed in the Property, and they would do the rest. Further, they represented to Plaintiff that the cost of the contractor would be \$5,000 a week for labor, plus the costs of materials, and that Chocholac could make the Contractor's payment to Ali and Sophie directly.

(FAC

¶ 24.)

The Court finds the allegations that

Mokhtar represented that he "had a contractor," that payments would be made to Mokhtar, and all Plaintiff needed to do was select appliances and designs, and "they would do the rest" is sufficient, at the pleadings stage, to allege

Mokhtar acted as a general contractor without a license and hired Esparza as a

subcontractor, also without a license, to withstand demurrer. Whether Mokhtari actually acted as a general contractor is a factual question to be resolved at later stages of the litigation.

Therefore, the Court overrules Mokhtari's demurrer to the third cause of action.

2.

MOTION TO STRIKE

Any party, within the time allowed to respond to a pleading, may serve and file a motion to strike the whole pleading or any part thereof.

(Code Civ. Proc., § 435, subd. (b)(1); Cal. Rules of Court, rule 3.1322, subd. (b).) On a motion to strike, the court may: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd. (a)-(b); *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782.)

Mokhtari argues that there is no contractual or statutory basis for the requested treble damages and

attorneys' fees.

Code of Civil Procedure section 1033.5, which outlines recoverable costs

to a prevailing party under Code of Civil Procedure section 1032, permits the

recovery of attorneys' fees when authorized by contract, statute, or law. (Code Civ. Proc., § 1033.5, subd.

(a)(10).) Code of Civil Procedure

section 1021 provides "[e]xcept as attorney's fees are specifically provided

for by statute, the measure and mode of compensation of attorneys and

counselors at law is left to the agreement, express or implied, of the parties

[....]"

Further, Code of Civil Procedure section 1029.8, subdivision (a)

provides:

Any unlicensed

person who causes injury or damage to another person as a result of providing

goods or performing services for which a license is required under Division 2

(commencing with Section 500) or any initiative act referred to therein,

Division 3 (commencing with Section 5000), or Chapter 2 (commencing with

Section 18600) or Chapter 3 (commencing with Section 19000) of Division 8, of

the Business and Professions Code, or Chapter 2 (commencing with Section 25210)

or Chapter 3 (commencing with Section 25230) of Part 3 of Division 1 of Title 4

of the Corporations Code, shall

be liable to the injured person for treble the amount of damages assessed in a civil action in any court having proper jurisdiction. The

court may, in its discretion, award all costs and attorney's fees to the injured person if that person prevails in the action.

Here, Plaintiff seeks treble

damages and attorneys' fees, pursuant to the third cause of action, which, as discussed above, is adequately alleged as to Mokhtari.

Therefore, Plaintiff has

articulated an adequate statutory basis for the requested treble damages and attorneys' fees.

CONCLUSION AND ORDER

For the reasons stated, the Court overrules Mokhtari's Demurrer in its entirety.

Further, the Court denies Mokhtari's Motion to Strike in its entirety.

Mokhtari shall file and serve an Answer to the FAC on or before September 2, 2026.

Mokhtari shall also provide notice of the Court's ruling and file the notice with a proof of service forthwith.

DATED: August 3, 2026 ____/s/____

Michael

E. Whitaker

Judge

of the Superior Court